

**SUBSTITUTE FOR
HOUSE BILL NO. 5197**

A bill to amend 1976 PA 388, entitled
"Michigan campaign finance act,"
by amending sections 7, 15, 24, 26, 51, and 54 (MCL 169.207,
169.215, 169.224, 169.226, 169.251, and 169.254), section 7 as
amended by 2001 PA 250, section 15 as amended by 2015 PA 269,
sections 24, 26, and 51 as amended by 2019 PA 93, and section 54 as
amended by 2023 PA 244, and by adding section 34a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 7. (1) "Filed" means the receipt by the appropriate
2 filing official of a statement or report required to be filed under
3 this act.

4 (2) "Filer" means a person required to file a statement or
5 report under this act.



(3) "Filing official" means the official designated under this act to receive required statements and reports.

(4) "Foreign national" means any of the following:

(a) An individual who is not a citizen of the United States.

(b) A government, or subdivision, of a foreign country or a municipality of a foreign country.

(c) A foreign political party.

(d) Any entity, including, but not limited to, a partnership, association, corporation, organization, or other combination of persons, that is organized under the laws of, or has its principal place of business in, a foreign country.

(5) ~~(4)~~—"Fund raising event" means an event such as a dinner, reception, testimonial, rally, auction, or similar affair through which contributions are solicited or received by purchase of a ticket, payment of an attendance fee, making a donation, or purchase of goods or services.

(6) ~~(5)~~—"Gift" means a payment, subscription, advance, forbearance, rendering, or deposit of money, services, or anything of value, unless consideration of equal or greater value is given in exchange.

(7) ~~(6)~~—"Honorarium" means a payment of money to a person holding elective office as consideration for an appearance, a speech, an article, or any activity related to or associated with the performance of duties as an elected official. An honorarium does not include any of the following:

(a) Reimbursement for the cost of transportation, accommodations, or meals for the person.

(b) Wages, salaries, other employee compensation, and expenses authorized to be paid by this state or a political subdivision of



1 this state to the person holding elective office.

2 (c) An award.

3 Sec. 15. (1) The secretary of state shall do all of the
4 following:

5 (a) Make available through ~~his or her~~ **the secretary of state's**
6 offices, and furnish to county clerks, appropriate forms,
7 instructions, and manuals required by this act.

8 (b) Develop a filing, coding, and cross-indexing system for
9 the filing of required reports and statements consistent with this
10 act, and supervise the implementation of the filing systems by the
11 clerks of the counties.

12 (c) Receive all statements and reports required by this act to
13 be filed with the secretary of state.

14 (d) Prepare forms, instructions, and manuals required under
15 this act.

16 (e) Promulgate rules and issue declaratory rulings to
17 implement this act in accordance with the administrative procedures
18 act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

19 (f) ~~Upon~~ **On** receipt of a written request and the required
20 filing, waive payment of a late filing fee if the request for the
21 waiver is based on good cause and accompanied by adequate
22 documentation. One or more of the following reasons constitute good
23 cause for a late filing fee waiver:

24 (i) The incapacitating physical illness, hospitalization,
25 accident involvement, death, or incapacitation for medical reasons
26 of ~~a person~~ **an individual** required to file, ~~a person~~ **an individual**
27 whose participation is essential to the preparation of the
28 statement or report, or a member of the immediate family of these
29 ~~persons~~ **individuals**.



1 (ii) Other unique, unintentional factors beyond the filer's
2 control not stemming from a negligent act or nonaction so that a
3 reasonably prudent person would excuse the filing on a temporary
4 basis. These factors include the loss or unavailability of records
5 due to a fire, flood, theft, or similar reason and difficulties
6 related to the transmission of the filing to the filing official,
7 such as exceptionally bad weather or strikes involving
8 transportation systems.

9 (2) ~~A~~ **The secretary of state shall issue a** declaratory ruling
10 ~~shall be issued~~ under this section only if the person requesting
11 the ruling has provided a reasonably complete statement of facts
12 necessary for the ruling or if the person requesting the ruling
13 has, with the permission of the secretary of state, supplied
14 supplemental facts necessary for the ruling. A request for a
15 declaratory ruling that is submitted to the secretary of state
16 ~~shall~~ **must** be made available for public inspection ~~within~~ **not later**
17 **than** 48 hours after its receipt. An interested person may submit
18 written comments regarding the request to the secretary of state
19 ~~within~~ **not later than** 10 business days after the date the request
20 is made available to the public. ~~Within~~ **Not later than** 45 business
21 days after receiving a declaratory ruling request, the secretary of
22 state shall make a proposed response available to the public. An
23 interested person may submit written comments regarding the
24 proposed response to the secretary of state ~~within~~ **not later than** 5
25 business days after the date the proposal is made available to the
26 public. Except as otherwise provided in this section, the secretary
27 of state shall issue a declaratory ruling ~~within~~ **not later than** 60
28 business days after a request for a declaratory ruling is received.
29 If the secretary of state refuses to issue a declaratory ruling,



1 the secretary of state shall notify the person making the request
2 of the reasons for the refusal and shall issue an interpretative
3 statement providing an informational response to the question
4 presented within the same time limitation applicable to a
5 declaratory ruling. A declaratory ruling or interpretative
6 statement issued under this section ~~shall~~**must** not state a general
7 rule of law, other than that which is stated in this act, until the
8 general rule of law is promulgated by the secretary of state as a
9 rule under the administrative procedures act of 1969, 1969 PA 306,
10 MCL 24.201 to 24.328, or under judicial order.

11 (3) Under extenuating circumstances, the secretary of state
12 may issue a notice extending for not more than 30 business days the
13 period during which the secretary of state shall respond to a
14 request for a declaratory ruling. The secretary of state shall not
15 issue more than 1 notice of extension for a particular request. A
16 person requesting a declaratory ruling may waive, in writing, the
17 time limitations provided by this section.

18 (4) The secretary of state shall make available to the public
19 an annual summary of the declaratory rulings and interpretative
20 statements issued by the secretary of state.

21 (5) A person may file with the secretary of state a complaint
22 that alleges a violation of this act. ~~Within~~**Not later than** 5
23 business days after a complaint that meets the requirements of
24 subsection (6) is filed, the secretary of state shall give notice
25 to the person against whom the complaint is filed. The notice ~~shall~~
26 **must** include a copy of the complaint. ~~Within~~**Not later than** 15
27 business days after this notice is mailed, the person against whom
28 the complaint was filed may submit a response to the secretary of
29 state. The secretary of state may extend the period for submitting



1 a response an additional 15 business days for good cause. The
2 secretary of state shall provide a copy of a response received to
3 the complainant. ~~Within~~ **Not later than** 10 business days after the
4 response is mailed, the complainant may submit a rebuttal statement
5 to the secretary of state. The secretary of state may extend the
6 period for submitting a rebuttal statement an additional 10
7 business days for good cause. The secretary of state shall provide
8 a copy of the rebuttal statement to the person against whom the
9 complaint was filed.

10 (6) A complaint filed under subsection (5) ~~shall~~ **must** satisfy
11 all of the following requirements:

12 (a) Be signed by the complainant.

13 (b) State the name, address, and telephone number of the
14 complainant.

15 (c) Include the complainant's certification that, to the best
16 of the complainant's knowledge, information, and belief, formed
17 after a reasonable inquiry under the circumstances, each factual
18 contention of the complaint is supported by evidence. However, if,
19 after a reasonable inquiry under the circumstances, the complainant
20 is unable to certify that certain factual contentions are supported
21 by evidence, the complainant may certify that, to the best of ~~his~~
22 ~~or her~~ **the complainant's** knowledge, information, or belief, there
23 are grounds to conclude that those specifically identified factual
24 contentions are likely to be supported by evidence after a
25 reasonable opportunity for further inquiry.

26 (7) The secretary of state shall develop a form that satisfies
27 the requirements of subsection (6) and may be used for the filing
28 of complaints.

29 (8) A person who files a complaint with a false certificate



1 under subsection (6)(c) is responsible for a civil violation of
2 this act. A person may file a complaint under subsection (5)
3 alleging that another person has filed a complaint with a false
4 certificate under subsection (6)(c).

5 (9) The secretary of state shall investigate the allegations
6 under the rules promulgated under this act. If the violation
7 involves the secretary of state, the immediate family of the
8 secretary of state, or a campaign or committee with which the
9 secretary of state is connected, directly or indirectly, the
10 secretary of state shall refer the matter to the attorney general
11 to determine whether a violation of this act has occurred.

12 (10) ~~No~~**Not** later than 45 business days after receipt of a
13 rebuttal statement submitted under subsection (5), or if no
14 response or rebuttal is received under subsection (5), the
15 secretary of state shall post on the secretary of state's ~~Internet~~
16 website whether or not there may be reason to believe that a
17 violation of this act has occurred. When the secretary of state
18 determines whether there may be reason to believe that a violation
19 of this act occurred or did not occur or determines to terminate
20 its proceedings, the secretary of state shall, ~~within~~**not later**
21 **than** 30 days ~~of~~**after** that determination, post on the secretary of
22 state's ~~Internet~~ website any complaint, response, or rebuttal
23 statement received under subsection (5) regarding that violation or
24 alleged violation and any correspondence that is dispositive of
25 that violation or alleged violation between the secretary of state
26 and the complainant or the person against whom the complaint was
27 filed. If the secretary of state determines that there may be
28 reason to believe that a violation of this act occurred, the
29 secretary of state shall endeavor to correct the violation or

1 prevent a further violation by using informal methods such as a
 2 conference, conciliation, or persuasion, and may enter into a
 3 conciliation agreement with the person involved. Unless violated, a
 4 conciliation agreement is a complete bar to any further civil or
 5 criminal action with respect to matters covered in the conciliation
 6 agreement. The secretary of state shall, ~~within~~**not later than** 30
 7 days after a conciliation agreement is signed, post that agreement
 8 on the secretary of state's ~~Internet~~ website. If, after 90 business
 9 days, the secretary of state is unable to correct or prevent
 10 further violation by these informal methods, the secretary of state
 11 shall do either of the following:

12 (a) Refer the matter to the attorney general for the
 13 enforcement of any criminal penalty provided by this act.

14 (b) Commence a hearing as provided in subsection (11) for
 15 enforcement of any civil violation.

16 (11) The secretary of state may commence a hearing to
 17 determine whether a civil violation of this act has occurred. The
 18 hearing ~~shall~~**must** be conducted in accordance with the procedures
 19 set forth in chapter 4 of the administrative procedures act of
 20 1969, 1969 PA 306, MCL 24.271 to ~~24.287.~~**24.288**. If after a hearing
 21 the secretary of state determines that a violation of this act has
 22 occurred, the secretary of state may issue an order requiring the
 23 person to pay a civil fine not more than triple the amount of the
 24 improper contribution or expenditure plus not more than \$1,000.00
 25 for each violation.

26 (12) A final decision and order issued by the secretary of
 27 state is subject to judicial review as provided by chapter 6 of the
 28 administrative procedures act of 1969, 1969 PA 306, MCL 24.301 to
 29 24.306. The secretary of state shall deposit a civil fine imposed



1 under this section in the general fund. The secretary of state may
2 bring an action in circuit court to recover the amount of a civil
3 fine.

4 (13) When a report or statement is filed under this act, the
5 secretary of state shall review the report or statement and may
6 investigate an apparent violation of this act under the rules
7 promulgated under this act. If the secretary of state determines
8 that there may be reason to believe a violation of this act has
9 occurred and the procedures prescribed in subsection (10) have been
10 complied with, the secretary of state may refer the matter to the
11 attorney general for the enforcement of a criminal penalty provided
12 by this act, or commence a hearing under subsection (11) to
13 determine whether a civil violation of this act has occurred.

14 (14) ~~No~~**Not** later than 60 business days after a matter is
15 referred to the attorney general for enforcement of a criminal
16 penalty, the attorney general shall determine whether to proceed
17 with enforcement of that penalty.

18 (15) Unless otherwise specified in this act, a person who
19 violates a provision of this act is subject to a civil fine of not
20 more than \$1,000.00 for each violation. A civil fine is in addition
21 to, but not limited by, a criminal penalty prescribed by this act.

22 (16) In addition to any other sanction provided for by this
23 act, the secretary of state may require a person who files a
24 complaint with a false certificate under subsection (6)(c) to do
25 either or both of the following:

26 (a) Pay to the secretary of state some or all of the expenses
27 incurred by the secretary of state as a direct result of the filing
28 of the complaint.

29 (b) Pay to the person against whom the complaint was filed



1 some or all of the expenses, including, but not limited to,
2 reasonable attorney fees incurred by that person in proceedings
3 under this act as a direct result of the filing of the complaint.

4 ~~(17) Except as otherwise provided in section 57, there~~ **There**
5 is no private right of action, either in law or in equity, under
6 this act. ~~Except as otherwise provided in section 57, the~~ **The**
7 remedies provided in this act are the exclusive means by which this
8 act may be enforced and by which any harm resulting from a
9 violation of this act may be redressed. The criminal penalties
10 provided by this act may only be enforced by the attorney general
11 and only upon referral by the secretary of state as provided under
12 subsection (10) or (13).

13 (18) The secretary of state may waive the filing of a campaign
14 statement required under section 33, 34, or 35 if the closing date
15 of the particular campaign statement falls on the same or a later
16 date as the closing date of the next campaign statement filed by
17 the same person, or if the period that would be otherwise covered
18 by the next campaign statement filed by the same person is 10 days
19 or less.

20 **(19) If the secretary of state or attorney general is**
21 **conducting an investigation or proceeding under this section for a**
22 **complaint related to a violation of this act by a foreign national**
23 **and a tax-exempt organization is involved or implicated, the**
24 **disclosure of the information or identity of donors to the tax-**
25 **exempt organization is prohibited, except as to the information**
26 **directly related to the alleged violation of this act. Except for**
27 **information directly related to the alleged violation of this act,**
28 **the donor information under this subsection is exempt from**
29 **disclosure under the freedom of information act, 1976 PA 442, MCL**



1 15.231 to 15.246. As used in this subsection, "tax-exempt
2 organization" means an organization exempt from taxation under
3 section 501(c) of the internal revenue code of 1986, 26 USC 501.

4 (20) ~~(19)~~—The clerk of each county shall do all of the
5 following:

6 (a) Make available through the county clerk's office the
7 appropriate forms, instructions, and manuals required by this act.

8 (b) Under the supervision of the secretary of state, implement
9 the filing, coding, and cross-indexing system prescribed for the
10 filing of reports and statements required to be filed with the
11 county clerk's office.

12 (c) Receive all statements and reports required by this act to
13 be filed with the county clerk's office.

14 (d) ~~Upon~~ **On** written request, waive the payment of a late
15 filing fee if the request for a waiver is based on good cause as
16 prescribed in subsection (1)(f).

17 Sec. 24. (1) A committee shall file a statement of
18 organization with the filing officials designated in section 36 to
19 receive the committee's campaign statements. A committee shall file
20 a statement of organization ~~within~~ **not later than** 10 days after the
21 committee is formed. A filing official shall maintain a statement
22 of organization filed by a committee until 5 years after the
23 official date of the committee's dissolution. A person who fails to
24 file a statement of organization required by this subsection shall
25 pay a late filing fee of \$10.00 for each business day the statement
26 remains not filed in violation of this subsection. The late filing
27 fee must not exceed \$300.00. A person who violates this subsection
28 by failing to file for more than 30 days after a statement of
29 organization is required to be filed is guilty of a misdemeanor



1 punishable by a fine of not more than \$1,000.00.

2 (2) The statement of organization required to be filed under
3 subsection (1) must include the following information:

4 (a) The name, street address, and, if available, the
5 ~~electronic mail~~**email** address and telephone number of the
6 committee, and the ~~electronic mail~~**email** address of the candidate.
7 If a committee is a candidate committee, the committee name must
8 include the first and last name of the candidate. A committee
9 address may be the home address of the candidate or treasurer of
10 the committee.

11 (b) The name, street address, and, if available, the
12 ~~electronic mail~~**email** address and telephone number of the treasurer
13 or other individual designated as responsible for the committee's
14 record keeping, report preparation, or report filing.

15 (c) The name and address of the financial institution in which
16 the official committee depository is or is intended to be located,
17 and the name and address of each financial institution in which a
18 secondary depository is or is intended to be located.

19 (d) The full name of the office being sought by, including
20 district number or jurisdiction, and the county residence of each
21 candidate supported or opposed by the committee.

22 (e) A brief statement identifying the substance of each ballot
23 question supported or opposed by the committee. If the ballot
24 question supported or opposed by the committee is a local ballot
25 question, the committee shall identify the county in which the
26 greatest number of registered voters eligible to vote on the ballot
27 question reside.

28 (f) Identification of the committee as a candidate committee,
29 political party committee, independent committee, independent



1 expenditure committee, political committee, or ballot question
2 committee if it is identifiable as such a committee.

3 **(g) If the committee is a ballot question committee, a**
4 **certification that no preliminary activity was directly or**
5 **indirectly funded by a foreign national. As used in this**
6 **subdivision, "preliminary activity" means a payment, loan, or**
7 **promise of money or anything of ascertainable monetary value for**
8 **goods, materials, services, or facilities in assistance of, or in**
9 **opposition to, the qualification, passage, or defeat of a ballot**
10 **question that was made before a ballot question committee submitted**
11 **a statement of organization.**

12 (3) An independent committee or political committee shall
13 include in the name of the committee the name of the person or
14 persons that sponsor the committee, if any, or with whom the
15 committee is affiliated. A person, other than an individual or a
16 committee, sponsors or is affiliated with an independent committee
17 or political committee if that person establishes, directs,
18 controls, or financially supports the administration of the
19 committee. For the purposes of this subsection, a person does not
20 financially support the administration of a committee by merely
21 making a contribution to the committee.

22 (4) If any of the information required in a statement of
23 organization is changed, the committee shall file an amendment when
24 the next campaign statement is required to be filed.

25 (5) When filing a statement of organization, a committee,
26 other than an independent committee, a political committee, or a
27 political party committee, may indicate in a written statement
28 signed by the treasurer of the committee that the committee does
29 not expect for each election to receive an amount in excess of



1 \$1,000.00 or expend an amount in excess of \$1,000.00. The treasurer
2 of a committee of an incumbent judge or supreme court justice is
3 considered to have made the statement required under this
4 subsection following appointment or election of that judge or
5 justice and is not required to file a written statement under this
6 subsection indicating that the committee does not expect for each
7 election to receive or expend an amount in excess of \$1,000.00.

8 (6) When filing a statement of organization, an independent
9 committee, an independent expenditure committee, a political
10 committee, or a political party committee may indicate in a written
11 statement signed by the treasurer of the committee that the
12 committee does not expect in a calendar year to receive or expend
13 an amount in excess of \$1,000.00.

14 (7) ~~Upon~~ **On** the dissolution of a committee, the committee
15 shall file a statement indicating dissolution with the filing
16 officials with whom the committee's statement of organization was
17 filed. Dissolution of a committee must be accomplished pursuant to
18 rules promulgated by the secretary of state under the
19 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
20 24.328.

21 (8) A candidate committee that files a written statement under
22 subsection (5) or that is considered to have made a statement under
23 subsection (5) is not required to file a dissolution statement
24 under subsection (7) if the committee failed to receive or expend
25 an amount in excess of \$1,000.00 and 1 of the following applies:

26 (a) The candidate was defeated in an election and has no
27 outstanding campaign debts or assets.

28 (b) The candidate vacates an elective office and has no
29 outstanding campaign debts or assets.



1 (9) A political committee organized for the purpose of making
2 independent expenditures formed before December 31, 2019 is
3 considered an independent expenditure committee. The secretary of
4 state may amend the statement of organization for any committee
5 affected by this subsection.

6 Sec. 26. (1) A campaign statement of a committee, other than a
7 political party committee, required ~~by~~**under** this act must contain
8 all of the following information:

9 (a) The filing committee's name, address, and telephone
10 number, and the full name, residential and business addresses,
11 ~~electronic mail~~**email** address, and telephone numbers of the
12 committee treasurer or other individual designated as responsible
13 for the committee's record keeping, report preparation, or report
14 filing.

15 (b) Under the heading "receipts", the total amount of
16 contributions received during the period covered by the campaign
17 statement; under the heading "expenditures", the total amount of
18 expenditures made during the period covered by the campaign
19 statement; and the cumulative amount of those totals. Forgiveness
20 of a loan must not be included in the totals. Payment of a loan by
21 a third party must be recorded and reported as an in-kind
22 contribution by the third party. In-kind contributions or
23 expenditures must be listed at fair market value and reported as
24 both contributions and expenditures. A contribution or expenditure
25 that is by other than completed and accepted payment, gift, or
26 other transfer, that is clearly not legally enforceable, and that
27 is expressly withdrawn or rejected and returned before a campaign
28 statement closing date need not be included in the campaign
29 statement and if included may, in a later or amended statement, be



1 shown as a deduction, but the committee shall keep adequate records
2 of each instance.

3 (c) The balance of cash on hand at the beginning and the end
4 of the period covered by the campaign statement.

5 (d) The following information regarding each fund-raising
6 event must be included in the report:

7 (i) The type of event, date held, address and name, if any, of
8 the place where the activity was held, and approximate number of
9 individuals participating or in attendance.

10 (ii) The total amount of all contributions.

11 (iii) The gross receipts of the fund-raising event.

12 (iv) The expenditures incident to the event.

13 (e) The full name of each individual from whom contributions
14 are received during the period covered by the campaign statement,
15 together with the individual's street address, the amount
16 contributed, the date on which each contribution was received, and
17 the cumulative amount contributed by that individual. The
18 occupation, employer, and principal place of business must be
19 stated if the individual's cumulative contributions are more than
20 \$100.00. For contributions of \$5.00 or less by an individual to a
21 political committee or independent committee, the secretary of
22 state shall accept for filing any written communication from the
23 political committee or independent committee that contains the
24 information otherwise required under this subsection. Any written
25 communication under this subdivision does not need to contain an
26 original signature.

27 (f) ~~The~~ **Except those individuals reported under subdivision**
28 **(e), the** cumulative amount contributed and the name and address of
29 each individual ~~, except those individuals reported under~~



1 ~~subdivision (e)~~, who contributed to the committee. The occupation,
 2 employer, and principal place of business must be stated for each
 3 individual who contributed more than \$100.00.

4 (g) The name and street address of each person, other than an
 5 individual, from whom contributions are received during the period
 6 covered by the campaign statement, together with an itemization of
 7 the amounts contributed, the date on which each contribution was
 8 received, and the cumulative amount contributed by that person.

9 (h) The name, address, and amount given by an individual who
 10 contributed to the total amount contributed by a person who is
 11 other than a committee or an individual. The occupation, employer,
 12 and principal place of business must be stated if the individual
 13 contributed more than \$100.00 of the total amount contributed by a
 14 person who is other than a committee or an individual.

15 (i) ~~The~~ **Except for expenditures made to or on behalf of**
 16 **another committee, candidate, or ballot question, the** cumulative
 17 total of expenditures and other disbursements totaling \$50.00 or
 18 less to any person made during the period covered by the campaign
 19 statement. ~~except for expenditures made to or on behalf of another~~
 20 ~~committee, candidate, or ballot question.~~

21 (j) The full name and street address of each person to whom
 22 expenditures or other disbursements totaling more than \$50.00 were
 23 made, together with the amount of each separate expenditure or
 24 disbursement to each person during the period covered by the
 25 campaign statement; the purpose of the expenditure or disbursement;
 26 the full name and street address of the person providing the
 27 consideration for which any expenditure or disbursement was made if
 28 different from the payee; the itemization regardless of amount of
 29 each expenditure made to or on behalf of another committee,



1 candidate, or ballot question; and the cumulative amount of
 2 expenditures for or against that candidate or ballot question for
 3 an election cycle. An expenditure made in support of more than 1
 4 candidate or ballot question, or both, must be apportioned
 5 reasonably among the candidates or ballot questions, or both.

6 (2) A candidate committee or ballot question committee shall
 7 report all cumulative amounts required ~~by~~**under** this section on a
 8 per election cycle basis. Except as provided in subsection (1)(j),
 9 an independent committee, independent expenditure committee, or
 10 political committee shall report all cumulative amounts **as** required
 11 ~~by~~**under** this section on a calendar year basis.

12 (3) A campaign statement of a committee, in addition to the
 13 other information required ~~by~~**under** this section, must include an
 14 itemized list of all expenditures during the reporting period for
 15 election day busing of electors to the polls, get-out-the-vote
 16 activities, slate cards, challengers, poll watchers, and poll
 17 workers.

18 (4) **A campaign statement of a ballot question committee, in**
 19 **addition to the other information required under this section, must**
 20 **include all of the following:**

21 (a) **An affirmation that the committee has not knowingly or**
 22 **willfully received, solicited, or accepted contributions from a**
 23 **foreign national.**

24 (b) **An affirmation that the donor associated with each**
 25 **contribution is not a foreign national and has not knowingly or**
 26 **willfully received, solicited, or accepted more than \$100,000.00 in**
 27 **aggregate from foreign nationals in the 4 years immediately**
 28 **preceding the date of the contribution.**

29 (5) ~~(4)~~ **For a reporting period in which a contribution is**



1 received that is to be part of a bundled contribution or a
2 reporting period in which a bundled contribution is delivered to
3 the candidate committee of a candidate for statewide elective
4 office, a bundling committee shall report to the secretary of
5 state, on a form provided by the secretary of state, all of the
6 following information, as applicable, about each contribution
7 received or delivered as part of a bundled contribution, and about
8 each bundled contribution delivered, in the reporting period:

9 (a) The amount of each contribution, the date it was received
10 by the bundling committee, and the candidate for statewide elective
11 office whom the contributor designated as the intended recipient.

12 (b) Each contributor's name and address and, for each
13 contribution exceeding \$100.00, the contributor's occupation,
14 employer, and principal place of business.

15 (c) The date each contribution is delivered to the candidate's
16 statewide elective office candidate committee.

17 (d) The total amount of bundled contributions delivered to
18 that candidate committee during the reporting period and during the
19 election cycle.

20 **(6)** ~~(5)~~—With its delivery of a bundled contribution to the
21 candidate committee of a candidate for statewide elective office, a
22 bundling committee shall deliver a report to that candidate
23 committee, on a form provided by the secretary of state, that
24 includes all of the following information, as applicable, about
25 each contribution delivered as part of the bundled contribution,
26 and about all bundled contributions delivered to that candidate
27 committee in the election cycle:

28 (a) The amount of each contribution, the date it was received
29 by the bundling committee, and the statewide elective office



1 candidate the contributor designated as the intended recipient.

2 (b) Each contributor's name and address and, for each
3 contribution exceeding \$100.00, the contributor's occupation,
4 employer, and principal place of business.

5 (c) The total amount of bundled contributions delivered to
6 that candidate committee during the reporting period and during the
7 election cycle.

8 **(7)** ~~(6)~~—For a reporting period in which a bundled contribution
9 is received, a candidate committee of a candidate for statewide
10 elective office shall report to the secretary of state, on a form
11 provided by the secretary of state, all of the following
12 information, as applicable, about each contribution delivered as
13 part of a bundled contribution received in the reporting period and
14 about all bundled contributions received by that candidate
15 committee:

16 (a) The amount of each contribution, the date it was received
17 by the candidate committee, and the name of the bundling committee
18 that delivered the contribution.

19 (b) Each contributor's name and address and, for each
20 contribution exceeding \$100.00, the contributor's occupation,
21 employer, and principal place of business.

22 (c) The total amount of bundled contributions received by that
23 candidate committee during the reporting period and during the
24 election cycle.

25 **(8)** ~~(7)~~—For a reporting period in which a connected
26 organization of a separate segregated fund makes a payment for a
27 prize or 1 or more items authorized under section 55(8), the
28 separate segregated fund shall report all of the following, as
29 applicable:



(a) The amount of any payment of costs for a prize, the value of the prize, the amount raised by the prize, and the amount, if any, reimbursed to the connected organization by the separate segregated fund for the prize.

(b) The amount per item of any payment of costs for items to be sold or offered in return for a contribution as part of ~~fundraising~~ **fund-raising** activities for the separate segregated fund, the amount per item that each item is offered at or offered for sale at, the value of each item, the aggregate amount paid for those items, and the amount, if any, reimbursed to the connected organization by the separate segregated fund for any items. If 1 or more of the same items are sold or offered in return for a contribution, a report by item type satisfies the reporting requirement under this subdivision.

(9) ~~(8)~~—As used in subsection ~~(7)~~, **(8)**, "value" means the regular purchase price offered by the vendor from whom an item is purchased, less any customary discount offered based on the number of items purchased in the same transaction.

Sec. 34a. (1) A ballot question committee shall not knowingly or willfully receive, solicit, or accept contributions from a foreign national, whether directly or indirectly.

(2) After a ballot question committee receives a contribution, the ballot question committee shall obtain from the donor an affirmation that the donor is not a foreign national and has not knowingly or willfully received, solicited, or accepted more than \$100,000.00 in aggregate from foreign nationals in the 4 years immediately preceding the date of the contribution.

(3) A ballot question committee shall return a contribution made by a person prohibited from making a contribution under



1 subsection (1) not later than 30 business days after receiving the
2 contribution.

3 (4) A person that violates this section is subject to a civil
4 fine of not more than double the amount of the undisclosed
5 contribution.

6 Sec. 51. (1) A person, other than a committee, that makes an
7 independent expenditure, advocating the election or defeat of a
8 candidate or the qualification, passage, or defeat of a ballot
9 question, in an amount of \$100.01 or more in a calendar year shall
10 file a report of the independent expenditure, ~~within~~**not later than**
11 10 days after making that independent expenditure, with the clerk
12 of the county of residence of that person. If the independent
13 expenditure advocates the election or defeat of a candidate for
14 state elective office or for judicial office, or for the
15 qualification, passage, or defeat of a statewide ballot question,
16 or if the person making the independent expenditure is not a
17 resident of this state, the person shall file the report with the
18 secretary of state in lieu of filing with a clerk of a county. The
19 report required under this section must be made on an independent
20 expenditure report form provided by the secretary of state, include
21 the date of the expenditure, a brief description of the nature of
22 the expenditure, the amount, the name and address of the person to
23 whom it was paid, the name and address of the person filing the
24 report, together with the name, address, occupation, employer, and
25 principal place of business of each person that contributed \$100.01
26 or more to the expenditure, and identify the candidate or ballot
27 question for or against which the independent expenditure was made.
28 **If the independent expenditure advocates for the qualification,**
29 **passage, or defeat of a statewide ballot question, the report must**



1 include an affirmation that the person making the independent
2 expenditure has not knowingly or willfully accepted more than
3 \$100,000.00 in aggregate from foreign nationals in the 4 years
4 immediately preceding the date the expenditure is made and that the
5 entity will not knowingly or willfully accept more than \$100,000.00
6 in aggregate from foreign nationals through the date of the
7 election in which the ballot question will appear on the ballot.

8 The filing official receiving the report shall forward copies, as
9 required, to the appropriate filing officers as described in
10 section 36.

11 (2) If a person fails to file a report as required under this
12 section, that person shall pay a late filing fee. If the person has
13 made independent expenditures totaling less than \$10,000.00, the
14 late filing fee is \$25.00 for each business day the report remains
15 unfiled, but not to exceed \$1,000.00. If the person has made
16 independent expenditures totaling \$10,000.00 or more, the late
17 filing fee is \$50.00 for each business day the report remains
18 unfiled, but not to exceed \$5,000.00. A person that violates this
19 subsection by failing to file a report required under this section
20 for more than 30 days after the report is required to be filed is
21 guilty of a misdemeanor punishable by imprisonment for not more
22 than 90 days or a fine of not more than \$1,000.00, or both.

23 Sec. 54. (1) Except as otherwise provided in this section and
24 section 55, and except with respect to loans made in the ordinary
25 course of business, a corporation, joint stock company, domestic
26 dependent sovereign, or labor organization shall not make a
27 contribution or expenditure or provide volunteer personal services
28 that are excluded from the definition of a contribution under
29 section 4(3) (a).



(2) An officer, director, stockholder, attorney, agent, or any other person acting for a labor organization, a domestic dependent sovereign, or a corporation or joint stock company, whether incorporated under the laws of this or any other state or foreign country, except corporations formed for political purposes, shall not make a contribution or expenditure or provide volunteer personal services that are excluded from the definition of a contribution under section 4(3)(a).

(3) ~~A-Except as otherwise provided in this section, a~~ corporation, joint stock company, domestic dependent sovereign, or labor organization may make a contribution to a ballot question committee or independent expenditure committee subject to this act.

~~A-Except as otherwise provided in this section, a~~ corporation, joint stock company, domestic dependent sovereign, or labor organization may make an independent expenditure in any amount advocating for the election or defeat of a candidate, or the qualification, passage, or defeat of a ballot question and does not for this reason become a committee, unless it solicits or receives contributions in excess of \$500.00 for the purpose of making the independent expenditure, but is subject to the independent expenditure reporting requirements under section 51.

(4) A foreign national shall not do any of the following:

(a) Make a contribution, independent expenditure, or expenditure to promote or defeat a ballot question or to qualify a question for placement on the ballot.

(b) Solicit, directly or indirectly, a donation, contribution, or expenditure by another person to promote or defeat a ballot question or to qualify a question for placement on the ballot.

(c) Direct, dictate, control, or, directly or indirectly,



1 participate in the decision-making process of a person to promote
2 or defeat a ballot question or to qualify a question for placement
3 on the ballot.

4 (5) A foreign national shall not make a contribution or
5 donation to any other person or entity with the express or implied
6 condition that the contribution or donation or any part of it be
7 used for any purpose prohibited under subsection (4).

8 (6) No individual, candidate, political party, committee, or
9 separate segregated fund shall, directly or indirectly through
10 another person or entity, knowingly do either of the following:

11 (a) Solicit, accept, or receive money from a foreign national
12 for any purpose prohibited under subsection (4).

13 (b) Make a contribution, expenditure, or independent
14 expenditure using money received from a foreign national for any
15 purpose prohibited under subsection (4).

16 (7) ~~(4)~~—A person that knowingly violates this section is
17 guilty of a felony punishable, if the person is an individual, by
18 imprisonment for not more than 3 years or a fine of not more than
19 \$5,000.00, or both, or, if the person is not an individual, by a
20 fine of not more than \$10,000.00.